Data License Agreement
for the named Dataset
SPARK 2022

Between:

University of Luxembourg, a Public Institution of Higher Education and Research, registered under RCS Luxembourg No. J20, having its registered office at 2 avenue de l'Université, L-4365 Esch-sur-Alzette , Luxembourg, hereinafter referred to as "**UNILU**", acting upon a proposition of its Interdisciplinary Centre for Security, Reliability and Trust, hereinafter referred to as "**SnT**", represented by Prof. Dr. Björn Ottersten, Director of the SnT, upon a proposition of the Computer Vision, Imaging and Machine Intelligence (CVI^2) Research Group, headed by Dr. Djamila Aouada

jointly referred to as **Licensor,**

And :

_____
ORGANIZATION NAME, ADDRESS, SIGNATORY NAME AND TITLE (PLEASE PRINT)

_____

referred to as **Licensee,**

This Dataset License Agreement (« Agreement ») becomes effective upon the date of the last signature below (“Effective Date”).

1. DEFINITIONS

1.1 “Dataset” means the proprietary Dataset specified above, which is owned, has been produced and maintained by the Licensor. The Dataset is a unique and new space dataset generated using the Unity3D game engine and Blender as a simulation environment. It was obtained by randomly placing a satellite or spacecraft model within the field of view of a synthetic camera. Different ranges and orientations of the camera were simulated. Furthermore, the sun and earth were placed in the background and randomly rotated around their axes in every frame.

The SPARK 2022 dataset contains two streams of data.

Stream 1 – Spacecraft Detection involves localize and classifying the object by estimating its bounding box and label. Stream-1 dataset is a unique space multi-modal annotated image dataset containing a total of ~110k RGB images of 11 object classes (10 spacecraft and one class of space debris). The data have been generated under a realistic space simulation environment, with a large diversity in sensing conditions, including extreme and challenging ones for different orbital scenarios, background noise, low signal-to-noise ratio (SNR), and high image contrast that defines actual space imagery.

Stream 2 – Spacecraft Trajectory Estimation focuses on Leveraging the knowledge of temporal data to estimate the 6DoF pose of the spacecraft. Stream-2 dataset contains 100+ trajectories (each containing 300 RGB images) of the target satellite “Proba-2” generated under a realistic space simulation environment.

1.2 “Permitted Uses” means a non-exclusive, non-transferable, non-assignable, free-of-charge right to use the Dataset solely to perform non-commercial scientific and/or academic research by the Licensee or education (teaching). The Permitted Uses do not involve any processing of personal data.

1.3 “Updates” means any revisions of, additions to, or deletions from the Dataset.

2. LICENSE

2.1. Subject to the terms and conditions of this Agreement, Licensor hereby grant to Licensee a non-exclusive, royalty-free, non-transferable license right (the “License”) for the term of this Agreement to use the Dataset for the Permitted Uses, but only as long as the Licensee complies with the terms and conditions of this Agreement. The Dataset is licensed to the Licensee, not sold.

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2.4 Any publication or work using this dataset, in whole or in part, should cite the following publications:

- *Arunkumar Rathinam, Vincent Gaudillière, Mohamed Adel Mohamed Ali, Miguel Ortiz Del Castillo, Leo Pauly, Djamila Aouada, "SPARK 2022 Dataset : Spacecraft Detection and Trajectory Estimation", https://doi.org/10.5281/zenodo.6599762, 2022.*
- *Leo Pauly, Michele Lynn Jamrozik, Miguel Ortiz Del Castillo, Olivia Borgue, Inder Pal Singh, Mohatashem Reyaz Makhdoomi, Olga-Orsalia Christidi-Loumpasefski, Vincent Gaudillière, Carol Martinez, Arunkumar Rathinam, Andreas Hein, Miguel Olivares Mendez, Djamila Aouada, "Lessons from a Space Lab -- An Image Acquisition Perspective", https://arxiv.org/abs/2208.08865, 2022.*

3. DELIVERY

As soon as practicable after the Effective Date, Licensor will provide to the Licensee one (1) copy of the Dataset by electronic means to an email of the Licensee.

4. UPDATING

During the term of this Agreement, the Licensor may provide Licensee with Updates to the Dataset as they become available and as reasonably practicable. Unless otherwise expressly indicated herein, all references in this Agreement to Dataset shall include all Updates thereto.

5. ARCHIVE

During the term of the Agreement specified in the following clause 6.1, the Licensor grant the Licensee the right to archive one (1) complete copy of the Dataset. The licensee shall use such copy of the Dataset strictly in accordance with the provisions of this Agreement.

6. TERM AND TERMINATION

6.1 This Agreement shall have an initial term of three (3) years commencing on the Effective Date. During this period, this Agreement may be terminated by Licensor, by registered letter with acknowledgement of receipt, at any time and automatically, subject to thirty (30) days' notice.

6.2 This Agreement may be terminated by Licensor if the following event shall occur: Licensee has materially breached any term or covenants of this Agreement, or if Licensor believes that Licensee or its authorized users have used the Dataset beyond the scope of this license and such material breach shall continue uncured for 30 days after written notice thereof from Licensors detailing such material breach.

7. POST-TERMINATION PROVISIONS

Except as provided below, as soon as practicable after termination of this Agreement for any reason whatsoever, without regard to the fault, but no later than 30 days after such termination, Licensee shall:

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(b) Expunge from any data storage facility owned by or under the control of the Licensee any data contained in or derived from the Dataset delivered to the Licensee pursuant to this Agreement.
(c) Certify to Licensor in writing that Licensee has complied with the requirement of this section.

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10.2 Licensees shall not alter, remove, obscure or obstruct the display of any copyright, trademark or other proprietary notice placed upon Dataset by Licensor.

10.3 Licensee shall execute and deliver to Licensor from time to time, at Licensor' request any further instruments or documents that may reasonably be required by Licensor to vest and confirm such proprietary rights to Licensor.

10.4 Licensee shall use the Dataset solely in accordance with the terms of this Agreement. Licensee shall not (a) copy, download, or otherwise reproduce the Dataset in any medium or in any way, in whole or in part, except that Licensee may print or download limited portion of the Dataset , which are the results of discrete searches; (b) alter, modify, or adapt the Dataset , including but no limited to decompiling, disassembling, or creating derivative works, without the prior written approval of Licensor, or (c) sell,

license or otherwise distribute to third parties, including to Licensee's subsidiaries and affiliates, the Dataset or any part or parts thereof.

10.5 Licensee acknowledge that the Dataset is the product of Licensor's extensive gathering and coordination of information, selection therefrom of information considered by Licensor to be relevant and useful, and original arrangement of selected information.

10.6 Licensee acknowledges that any use of the Dataset by Licensee which is not in accordance with the terms of this Agreement or any violation of the restrictions imposed on Licensee's use of the Dataset would cause irreparable harm to Licensor. Accordingly, Licensee agrees that in the event of any such violation, Licensor shall be entitled to immediate injunctive relief (temporary, preliminary or permanent, as the case may be) against Licensee, its officers and employees, in addition to such other tights and remediless to which Licensor may be entitled by the Luxembourg law of 18 April 2001 on Copyrights, Related Rights and Databases.

11. PERSONAL DATA PROTECTION

To the extent the execution of the Agreement shall entail processing of personal data for their staff, collaborators or students (the "Personal Data") within the meaning of applicable data protection laws and especially the General Data Protection Regulation 2016/679 ("GDPR") (the "Data Protection Legislation"), the Parties agree to comply with the GDPR (the "Data Protection Legislation"). Both Parties may process Personal Data in the framework of the execution of the Agreement in their respective capacity as independent controllers (within the meaning of the Data Protection Legislation), in accordance with its privacy notice which is available on its website or on any other support and also available upon request. Each Party shall ensure that any Personal Data provided to the other Party by, or on its behalf or by, or on behalf of a related data subject has been collected lawfully, fairly and in a transparent manner, so as to enable such Personal Data to be processed by each Party. Where necessary, each Party will provide or procure to provide the other Party with all necessary evidence as to the adequate information of data subjects whose Personal Data will be processed, as may be reasonably requested by the Receiving Party or the Disclosing Party.

In case the Parties wish to exchange Personal Data within this Agreement in the future, in the case of processing on behalf or if the parties determine jointly the personal data processing they shall set out the purpose of such personal data processing or exchange and define their respective roles and responsibilities in accordance with the GDPR requirements.

12. MISCELLANEOUS

12.1 The parties are independent contractors and neither is an agent, employee, partner, or joint venture of the other. Furthermore, neither party is authorized to waive any right, or assume or create any contract or obligation of any kind in the name of, or on behalf of, the other or to make any statement that it has the authority to do so.

12.2 This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes any and all prior and contemporaneous understanding, written or oral, concerning the subject matter of this Agreement. Headings in this Agreement are for convenience only and shall have no legal meaning or effect.

12.3 Except as otherwise expressly provided herein, any amendment or modification of this Agreement must be approved in writing by a duly authorized representative of each party.

12.4 No waiver by either party of any term or condition of this Agreement, whether by conduct or otherwise, in any one or more instances, shall be deemed a further or continuing waiver of any such term or condition, or a waiver of any other term or condition of this Agreement.

12.5 If any provision of this Agreement is found to be invalid by any court, arbitrator, arbitration panel (pursuant to section 12.9 below) having competent jurisdiction, the invalidity of such provision shall not affect the validity of the remaining provisions hereof.

12.6 Notwithstanding termination or expiration of this Agreement, the terms of sections 7,8, 9 and 10 shall survive termination or expiration and remain in full force and effect.

12.7 All notices given pursuant to this Agreement shall be in writing.

12.8 Each party represents that all necessary approvals and consents have been obtained for entry into this Agreement.

12.9 This Agreement shall be governed by, and construed in accordance with, the laws of Luxembourg, without reference to principles of choice of laws. Any and all disputes between the Parties concerning the existence, validity, interpretation, performance and termination of this contract (or any of its clauses), which the Parties are unable to settle out-of-court, shall be referred to the Courts of Luxembourg having jurisdiction.

12.10 This Agreement is binding upon and shall inure to the benefit of the parties and their respective permitted successors, trustees and assigns. Neither party shall have the right to assign this Agreement without the prior written consent of the other, which consent shall not be unreasonably withheld or delayed. Notwithstanding the foregoing, Licensor shall have the right to assign its rights under this Agreement, in whole or in part, to any entity controlling, controlled by, or under common control with Licensor or to any entity which shall succeed to all or substantially all of the assets, liabilities, and goodwill of Licensor having to do with licensor's performance of this Agreement, provided that such successor entity shall assume all the duties and obligation of Licensor under this Agreement.

Executed in two (2) originals in Luxembourg

Date:___/____/___

For Licensor:
University of Luxembourg (SnT)

Signed by:

……
Prof. Dr. Björn Ottersten,
SnT Director

For Licensee:

Signed by:

……..
Name of the signatory:_____

Title:_____